

Lech -- Please let me know if you did not receive the attachment via my subsequent e-mail. I understand the UCC searches and filings to be needed in relation to the attachment's Section 6(b). Upon completion of negotiations, I will send you an electronic copy of the finalized Netting and Setoff Agreement to facilitate Cadwalader's preparation of the financing statement filings. --David Portz

-----Original Message-----

From: "Lech Kalembka" <Lech.Kalembka@cwt.com>@ENRON
Sent: Monday, November 05, 2001 2:54 PM
To: Portz, David
Subject: Re: AEP Master Netting Agr

I did not find an attachment. Also, I assume that we will prepare UCC filings and order UCC searches. Thank you.

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03:32 PM "Williams, Jason R (Credit)"
<Jason.R.Williams@ENRON.com>
Subject: AEP Master Netting
Agr

Lech - A high priority Master Netting and Setoff Agreement (see attached) is in the late stages of negotiation with the below-referenced AEP affiliates. The agreement is currently intended to be limited to masters/ transactions between ENA &/or EPMI and two major AEP trading affiliates, American Electric Power Service Corporation as Agent for the AEP Operating Companies ("AEP") and AEP Energy Services, Inc. ("AEPESI"). The Netting Agreement explicitly identifies enabling agreements between those entities relating to trading physical gas, physical power, and financial swaps. Earlier today the Enron Credit group indicated that ENA trades (using GTCs) physical coal and physical synfuel with American Electric Power Service Corporation. Please contact me with any questions. -- David

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